

Laxmi Narayan Mishra v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 30 November 2022 · WRIT-C No. 8419 of 2022 · **Writ rejected; Ombudsman billing order upheld; Rs 15,991 due in one month.**

HEADNOTE

A writ challenging the Electricity Ombudsman, Lucknow's order of 3 July 2020, which settled a billing dispute with Madhyanchal Vidyut Vitran Nigam Ltd. by reference to the U.P. Electricity Supply Code, 2005, was rejected. The Court found no illegality in that order. The petitioner undertook to pay the outstanding Rs. 15,991 within one month, failing which the opposite parties may recover in accordance with law.

FACTUAL SUMMARY

Laxmi Narayan Mishra approached the Allahabad High Court at Lucknow against U.P. Power Corporation Ltd. and three others, questioning the Electricity Ombudsman, Lucknow's order of 3 July 2020. The Ombudsman had settled his billing dispute with Madhyanchal Vidyut Vitran Nigam Ltd. by reference to the U.P. Electricity Supply Code, 2005. Mishra appeared in person. The sum outstanding in compliance with the Ombudsman's order was Rs. 15,991.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Writ against Ombudsman billing settlement under the Supply Code

HOLDING

The Electricity Ombudsman's order dated 03.07.2020, which settled the billing dispute between the petitioner and Madhyanchal Vidyut Vitran Nigam Ltd. keeping in view the relevant provisions of the U.P. Electricity Supply Code, 2005, discloses no illegality. The writ is rejected. The outstanding amount of Rs. 15,991 is to be paid within one month; on default the opposite parties may recover in accordance with law. ¶ 1

FLAG No clause number is stated. The order refers only to the 'relevant provisions' of the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

no-illegality-in-ombudsman-supply-code-order Finding no illegality in the Ombudsman's order of 03.07.2020 settling the billing dispute under the U.P. Electricity Supply Code, 2005, the High Court rejected the writ and recorded the petitioner's undertaking to pay Rs. 15,991 within one month. ¶ 1